



Covered Material and Producer Definitions: **Washington**



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Version History

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Introduction

[Chapter 70A.208 Revised Code of Washington \(RCW\) SOLID WASTE—PACKAGING AND PAPER PRODUCTS—PRODUCER RESPONSIBILITY](#): The Recycling Reform Act as codified

The information provided in this guidance document is designed to help businesses identify covered materials and the responsible producer for those materials in Washington under the “Recycling Reform Act.” Currently, there are no Rules or Regulations in Washington to provide additional specificity to the definitions in the Act, and a Draft Program Plan is not expected until 2028. Further guidance, including material reporting categories, will be provided when these details are known. In the meantime, producers should consult with their legal counsel on whether they or their products are covered by the statutory definitions included in this resource.

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Determining Your Obligations in Washington

There are two primary questions businesses need to ask to help determine if they are obligated under RCW 70A.208.

- Is the material associated with my products covered by Washington's packaging EPR law?
- Is my business the responsible producer for those covered materials?

EPR laws for packaging and paper vary from state to state but are generally designed to apply to single use packaging, paper, and some disposable products. As a first step in the process of identifying whether your company has obligations under an EPR law, companies should review with their legal counsel the definitions of each material type to determine whether the materials associated with the products placed in the market in Washington are subject to the state's packaging EPR law. Second, companies should review the producer hierarchy associated with the covered materials to determine if their business is the obligated producer for those materials.

Washington has identified exemptions of specific materials and has also exempted specific producers from the obligations of their state EPR laws. Those exemptions are also outlined in this guidance document.

For the convenience of producers, CAA has compiled into this one resource the relevant Washington EPR statutory language. This provides producers a single source for relevant definitions and the associated producer hierarchies for different categories of covered materials.

Washington Definitions

RCW 70A.208.020(13) "Covered Material" means packaging and paper products introduced into the state. "Covered material" does not include exempt materials.

RCW 70A.208.020(14) "Covered materials type" means a singular and specific type of material, such as paper, plastic, metal, or glass, that is a covered material and that:

(a) May be categorized based on distinguishing chemical or physical properties, including properties that allow a covered materials type to be aggregated into a discrete commodity category for purposes of reuse, recycling, or composting; and

(b) Is based on similar uses in the form of a product or packaging.

Covered Product (Material) Type	Specific Scenario	Producer Hierarchy (Statute)
Packaging RCW 70A.208.020(25) (a) "Packaging" means a material, substance, or object that is used to protect, contain, transport, serve, or facilitate delivery of a product and is sold or supplied with the product to the consumer for personal, noncommercial use.	Packaged item supplied at a physical retail location	RCW 70A.208.020(29) (a) "Producer" means the following person responsible for compliance with requirements under this chapter for a covered material introduced into the state: (i) For items sold in or with packaging at a physical retail location in this state: (A) If the item is sold in or with packaging under the brand of the item manufacturer or is sold in packaging that lacks identification of a brand, the producer is the person that manufactures the item; (B) If there is no person to which (a)(i)(A) of this subsection applies, the producer is the person that is licensed to manufacture and sell or

Covered Product (Material) Type	Specific Scenario	Producer Hierarchy (Statute)
"Packaging" does not include exempt materials.		offer for sale to consumers in this state an item with packaging under the brand or trademark of another manufacturer or person; (C) If there is no person to which (a)(i)(A) or (B) of this subsection applies, the producer is the brand owner of the item; (D) If there is no person described in (a)(i)(A), (B), or (C) of this subsection within the United States, the producer is the person who is the importer of record for the item into the United States for use in a commercial enterprise that sells, offers for sale, or distributes the item in this state; or (E) If there is no person described in (a)(i)(A) through (D) of this subsection, the producer is the person that first distributes the item in or into this state;
	Packaged item supplied through remote distribution (e-commerce)	RCW 70A.208.020(29) (a)(ii) For items sold or distributed in packaging in or into this state via e-commerce, remote sale, or distribution: (A) For packaging used to directly protect or contain the item, the producer of the packaging is the same as the producer identified under (a)(i) of this subsection; and (B) For packaging used to ship the item to a consumer, the producer of the packaging is the person that packages the item to be shipped to the consumer;

Covered Product (Material) Type	Specific Scenario	Producer Hierarchy (Statute)
		(iii) For packaging that is a covered material and is not included in (a)(i) and (ii) of this subsection, the producer of the packaging is the person that first distributes the item in or into this state;
Paper Products RCW 70A.208.020(26) "Paper product" means paper sold or supplied to a consumer for personal, noncommercial use, including flyers, brochures, booklets, catalogs, magazines, printed paper, and all other paper materials except for: (a) Bound books; (b) conservation-grade and archival-grade paper; (c) newspapers, including supplements or enclosures; (d) magazines that have a circulation of fewer than 95,000 and that includes	Paper Products	RCW 70A.208.020(29) (a)(iv) For paper products that are magazines, catalogs, telephone directories, or similar publications, the producer is the publisher; (v) For paper products not described in (a)(iv) of this subsection: (A) If the paper product is sold under the manufacturer's own brand, the producer is the person that manufactures the paper product; (B) If there is no person to which (a)(v)(A) of this subsection applies, the producer is the person that is the owner or licensee of a brand or trademark under which the paper product is used in a commercial enterprise, sold, offered for sale, or distributed in or into this state, whether or not the trademark is registered in this state; (C) If there is no person to which (a)(v)(A) or (B) of this subsection applies, the producer is the brand owner of the paper product; (D) If there is no person described in (a)(v)(A), (B), or (C) of this subsection within the United States, the producer is the person that imports the paper product into the United States for use in a commercial enterprise that sells, offers for sale, or distributes the paper product in this state; or

Covered Product (Material) Type	Specific Scenario	Producer Hierarchy (Statute)
content derived from primary sources related to news and current events; (e) copy paper; (f) paper for use in building construction; and (g) paper that could reasonably be anticipated to become unsafe or unsanitary to handle.		(E) If there is no person described in (a)(v)(A) through (D) of this subsection, the producer is the person that first distributes the paper product in or into this state;

Exempt Materials

RCW 70A.208.020(19) "Exempt materials" means materials, or any portion of materials, that are:

Product Category	Product Category Description (Statute)
Packaging for Drug, Medical Devices & Nutritional Supplements	(a) Packaging for infant formula, as defined in 21 U.S.C. Sec. 321(z); (b) Packaging for medical food, as defined in 21 U.S.C. Sec. 360ee(b)(3); (c) Packaging for a fortified oral nutritional supplement used by persons who require supplemental or sole source nutrition to meet nutritional needs due to special dietary needs directly related to cancer, chronic kidney disease, diabetes, malnutrition, or failure to thrive, as those terms are defined by the International Classification of Diseases, tenth revision; (d) Packaging for a product regulated as a drug, medical device, or dietary supplement by the United States food and drug administration, including associated components and consumable medical equipment, under the federal food, drug, and cosmetic act (21 U.S.C. Sec. 321 et seq.), or a product regulated as a biologic or vaccine by the United States food and drug administration under the public health service act (42 U.S.C. Sec. 201 et seq.); (e) Packaging for a medical equipment or product used in medical settings that is regulated by the United States food and drug administration, including associated components and consumable medical equipment; (f) Packaging for drugs, biological products, parasiticides, medical devices, or in vitro diagnostics that are used to treat, or that are administered to, animals and are regulated by the United States food and drug administration under the federal food, drug, and cosmetic act (21 U.S.C. Sec. 301 et seq.) and by the United States department of agriculture under the federal virus-serum-toxin act (21 U.S.C. Sec. 151 et seq.);

Product Category	Product Category Description (Statute)
Products Related to Specific Industry Sectors	(g) Noncompostable film plastic packaging used in direct contact with raw meat; (n) Packaging used for bulk construction materials;
Hazardous Products	(h) Packaging for products regulated by the United States environmental protection agency under the federal insecticide, fungicide, and rodenticide act (7 U.S.C. Sec. 136 et seq.); (i) Packaging used to contain liquefied petroleum gas and are designed to be refilled; (j) Packaging used to contain hazardous or flammable products classified by the 2012 federal occupational safety and health administration hazard communication standard, 29 C.F.R. Sec. 1910.1200 (2024), that prevent the packaging from being reduced or made reusable, recyclable, or compostable, as determined by the department; (k) Packaging that is associated with products managed through a paint stewardship plan approved under chapter 70A.515 RCW;
Durable Packaging	(m) Used to protect or store a durable product for a period of at least five years;
Industrial/Commercial Packaging	(o) Covered materials that: (i) A producer distributes to another producer; (ii) Are subsequently used to contain a product and the product is distributed to a commercial or business entity for the production of another product; and (iii) Are not introduced to a person other than the commercial or business entity that first received the product used for the production of another product; and

Product Category	Product Category Description (Statute)
Packaging with Demonstrated Recycling Rates *Producers who identify that they have products that will be exempt under this subsection should register with CAA until they receive confirmation from the Department that they have adequately demonstrated that the product meets the criteria.	(p) Covered materials for which the producer demonstrates to the department that the covered material meets all of the following criteria: (i) The material is not collected through a residential recycling collection service; (ii) The material is recycled at a responsible market; (iii) The material is intended to be used and collected within a commercial setting; *(iv)(A) The producer annually demonstrates to the department that the material has had a state recycling rate of 65 percent for three consecutive years, until December 31, 2029. Beginning January 1, 2030, the producer must demonstrate to the department every two years that the material has had a state recycling rate of at least 70 percent annually; or (B) The producer annually demonstrates to the department that the material is directly managed by the producer and has had a reuse or recycling rate of 65 percent for three consecutive years, until December 31, 2029. Beginning January 1, 2030, the producer must demonstrate to the department every two years that the material controlled by the producer has had a reuse or recycling rate of at least 70 percent annually; and (v) If only a portion of the material sold in or into the state by a producer meets the criteria of (p)(i) of this subsection, only the portion of the material that meets that criteria is an exempt material and any portion that does not meet the criteria is a covered material for purposes of this chapter.
Certain Paper Products	RCW 70A.208.020(26) (a) Bound books;

Product Category	Product Category Description (Statute)
	(b) conservation-grade and archival-grade paper; (c) newspapers, including supplements or enclosures; (d) magazines that have a circulation of fewer than 95,000 and that includes content derived from primary sources related to news and current events; (e) copy paper; (f) paper for use in building construction; and (g) paper that could reasonably be anticipated to become unsafe or unsanitary to handle.
Other *Producers who identify that they have products for which they will submit a petition under this section should register with CAA until their temporary exclusion has been granted by the department.	*(l) Excluded materials, as determined by the department under RCW 70A.208.260; 70A.208.260 (1) Except as provided in subsection (4) of this section, one year prior to the submission of a plan, a producer, group of producers, or a producer responsibility organization may submit a petition to the department to request for reasons of public health or safety the temporary exclusion of packaging used to contain the following categories of products, subcategories of the following categories of products, or individual products: (a) Raw meat products that are demonstrated to transfer pathogens to direct contact packaging; (b) Products regulated under the poison prevention packaging act of 1970; and (c) Products subject to requirements under federal laws that make their inclusion in the requirements of this chapter infeasible or inadvisable. (2) A petition must provide information that is necessary and sufficient for the department to make a determination including, at a minimum, the following:

Product Category	Product Category Description (Statute)
	(a) The technical feasibility of including the category of product, subcategory of product, or individual product in the program created by this chapter, and in recycling the packaging of the product or products; (b) An analysis of any potential risks to public health and safety associated with the inclusion of a category of product, subcategory of product, or individual product in the program created by this chapter, and in recycling the packaging of the product or products; and (c) The progress made by producers in achieving the goals of this chapter, including by reducing the amount of packaging used with the products, increasing the recycled content of the product packaging, and increasing the ability of the products' packaging to be reused, composted, or recycled if appropriate. (3) The department must make a determination and notify the petitioner within 90 days of receipt of the petition. (4) The producer of a product that is temporarily excluded from the requirements of this chapter under this section must report, directly to the department in a form created by the department, the information related to the temporarily excluded product that is required to be reported to the department by producer responsibility organizations under RCW <u>70A.208.030</u> and <u>70A.208.200</u>.

Exempt Producers

RCW 70A.208.020(29)(b) "Producer" does not include:

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Government	RCW 70A.208.020(29)(b) (i) Government entities; RCW 70A.208.020(20) "Government entity" means any: (a) County, city, town, or other local government, including any municipal corporation, quasi-municipal corporation, or special purpose district, or any office, department, division, bureau, board, commission, or agency thereof, or other local public agency; (b) State office, department, division, bureau, board, commission, or other state agency; (c) Federally recognized Indian tribe whose traditional lands and territories include parts of Washington; or (d) Federal office, department, division, bureau, board, commission, or other federal agency.
Non-Profits	RCW 70A.208.020(29)(b) (ii) Registered 501(c)(3) charitable organizations and 501(c)(4) social welfare organizations;

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Small Producers/ Industry Specific Exemption	RCW 70A.208.020(29)(b) (iii) De minimis producers RCW 70A.208.020(16) "De minimis producer" means a producer that: (a) In their most recent fiscal year introduced less than one ton of covered materials; (b) Has a global gross revenue, not including on-premises alcohol sales, for the prior fiscal year of: (i) Until January 1, 2031, less than \$5,000,000; or (ii) Beginning January 1, 2031, less than \$5,000,000, as adjusted for inflation. The department must use the consumer price index for urban wage earners to calculate the annual rate of inflation adjustment effective January 1st of each year, beginning January 1, 2031; or (c) Is an agricultural employer, as defined in RCW 19.30.010, regardless of where the agricultural employer is located, with less than \$5,000,000, as adjusted for inflation as described in (b) of this subsection, in gross revenue in Washington from consumer sales of agricultural commodities sold under the brand name of the agricultural employer.